

course can have no claim to reimbursement (*e*), but if he put in the life of another, the expenses will be apportioned at the death of the tenant for life, according to the time of his actual enjoyment of the renewed interest (*f*); and his estate will be a creditor on the premises for the apportionment though the remaindermen be his own children, who resist the claim on the ground of advancement (*g*).

12. **Contribution to fine by annuitants.**—In the case of a testator devising all his interest in leaseholds subject to an *annuity*, the question of the annuitant's contribution has been differently regarded by different judges. In *Maxwell v. Ashe* (*h*), the case of a *will*, Sir John Strange decided that the annuitant was *not* bound to contribute; and in *Moody v. Matthews* (*i*), where a feme *sold* an annuity to A. for his life, out of tithes held by her upon lease, and covenanted to pay the annuity, and that the tithes should continue subject to it during the life of A., and the feme married and died, and the husband, who took the term by survivorship, renewed at his own expense, Sir W. Grant determined that the annuitant was not to be called upon to contribute, for that would be to make him pay the consideration twice, and he said the case of *Maxwell v. Ashe* was decisive. On the other hand, it was ruled by Lord Manners, in the case of a *will*, that the annuitant must contribute in proportion to his interest in the property: for though the testator had given no direction upon this point, it was incident to this sort of tenure (*j*). At the time of this decision, his Lordship [*185] was not aware of the * cases before Sir J. Strange and Sir W. Grant; but on a subsequent occasion, when the same point again arose before him, he adhered to the same opinion, notwithstanding those authorities, for “all the legatees,” he said, “appear to have been equally the objects of the testator's favour. Could it have been his intention that one of them alone should bear the expense of the

(*e*) *Lawrence v. Maggs*, 1 Eden, 453.

(*f*) See *infra*.

(*g*) *Lawrence v. Maggs*, 1 Eden, 453.

(*h*) Cited 7 Ves. 184.

(*i*) 7 Ves. 174; and see *Jones v. Kearney*, 1 Conn. & Laws. 47; *Thomas v. Burne*, 1 Dru. & Walsh, 657.

(*j*) *Winslow v. Tighe*, 2 B. & B. 195.